

I. Request

1. The Ministry of Foreign Affairs requested on February 18, 2025, that the National Commission for Data Protection (CNPD) issue an opinion "with greater urgency" regarding the draft Cooperation Agreement between the Portuguese Republic and the Federative Republic of Brazil to Strengthen the Prevention and Combat of Human Trafficking and the Illicit Trafficking of Migrants and Assistance to Victims (hereinafter referred to as the Draft Agreement).
2. The CNPD issues this opinion within the scope of its powers and competencies, as an independent administrative authority with authority to oversee the processing of personal data, conferred by paragraph v) of no. 1 of Article 57, and paragraph b) of no. 3 of Article 58, both of Regulation (EU) 2016/679, of April 27, 2016 - General Data Protection Regulation (hereinafter referred to as GDPR), in conjunction with the provisions of paragraph a) of no. 1 of Article 6 of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order (hereinafter referred to as LERGPD).

II. Analysis

i) The purposes of the "Draft Agreement"

3. In its Preamble, it begins by referencing that "both are parties to the United Nations Convention against Transnational Organized Crime, of November 15, 2000, the Protocol to Prevent, Suppress and Punish Trafficking in Persons, especially Women and Children," and the Protocol against the Illicit Trafficking of Migrants by Land, Sea, and Air, which complement it."
4. It further states that "the Agreement between the Portuguese Republic and the Federative Republic of Brazil for the Prevention and Suppression of the Illicit Trafficking of Migrants, signed in Lisbon on July 11, 2003."
5. It also added the "need to guarantee the rights and obligations enshrined in their respective legal orders, as well as those contained in the international conventions of which they are Parties."
6. To this end, it established as its objective "to strengthen the mechanisms of cooperation between them [Parties], so that they favor and promote the implementation of adequate measures for prevention, criminal prosecution, assistance, and protection that guide and facilitate the coordinated implementation of activities and efforts in the joint fight against the crimes of human trafficking and migrant trafficking."
7. To this end, it established as its object in Article 1 "the promotion and realization of joint cooperation actions between the Parties for the prevention and combat of human trafficking, migrant trafficking, and other associated criminality, as well as the assistance and protection of victims, in full respect for human rights and the legislation of each Party."

ii) The legal protection of privacy and personal data

8. The multi-level legal framework concerning the protection of privacy and personal data for the assessment of the present "Draft Agreement" is established in the international and bilateral agreements concluded by the respective Parties, as previously mentioned, as well as, concerning the Portuguese Republic, by the European legal framework of human rights and the European Union, as well as its national legislation, particularly the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data (hereinafter referred to as Convention 108+), the Charter of Fundamental Rights of the European Union (hereinafter referred to as CDFUE), and the General Data Protection Regulation.
9. The aforementioned United Nations Convention against Transnational Organized Crime (DR 1-A, no. 79, of April 2, 2004), enshrines in its Article 6, no. 1 that "[i]n cases where it is deemed appropriate and to the extent permitted by its internal law, each State Party shall protect the privacy and identity of

victims of trafficking in persons, namely by establishing the confidentiality of judicial proceedings related to such trafficking."

10. In turn, in the aforementioned Agreement between the Portuguese Republic and the Federative Republic of Brazil for the Prevention and Suppression of the Illicit Trafficking of Migrants, signed in Lisbon on July 11, 2003, it was established that "[t]he exchange of information provided for in this provision shall observe the internal legislation of each of the Contracting States, especially regarding the protection of personal data and the privacy of individuals."

11. The Council of Europe Convention on Action against Trafficking in Human Beings (STE no. 197) establishes in Article 11, titled "Protection of Private Life," more precisely in no. 1 that "Each Party shall protect the private life and identity of victims. Personal data concerning them shall be recorded and used under the conditions provided for by Convention 108+. In no. 2 it enshrines that "Each Party shall take measures which, in particular, ensure that the identity, or elements that allow identification, of a child victim of trafficking shall not be made public by the media or others, except if, in exceptional circumstances, such publicity facilitates the location of the child."

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members of the child's family or otherwise ensure their well-being and protection." In item 3 it establishes that "Each Party shall consider the adoption, in accordance with Article 10 of the Convention for the Protection of Human Rights and Fundamental Freedoms, of measures aimed at encouraging the media to protect the privacy and identity of victims through self-regulation or regulatory or co-regulatory measures."

12. The Council of Europe Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, commonly known as Convention 108+, in its definitions set out in Article 2 considers "personal data" as "any information relating to an identified or identifiable natural person ('data subject')," while "data processing" refers to "any operation or set of operations performed on personal data, such as collection, storage, preservation, alteration, retrieval, disclosure, making available, erasure, destruction, or execution of logical and/or arithmetic operations on such data."

13. Furthermore, in establishing in Article 14 the parameters for cross-border flows, it specifies in paragraph 2 that "When the recipient is subject to the jurisdiction of a State or international organization that is not a Party to this Convention, the transfer of personal data may only take place if an appropriate level of protection is ensured based on the provisions of this Convention."

14. In turn, according to Article 8 of the Charter of Fundamental Rights of the European Union (CDFUE), the processing of personal data must be carried out with strict respect for the rights, freedoms, and guarantees of individuals, particularly the right to the protection of personal data (principle of legality).

15. Regarding the General Data Protection Regulation (GDPR), it stipulates in Article 5, paragraph 1 that personal data must be: i) processed lawfully, fairly, and transparently (lawfulness, fairness, and transparency); ii) collected for specified, legitimate purposes and not processed in a manner incompatible with those purposes (purpose limitation); iii) adequate, relevant, and limited to what is necessary for the purposes for which they are processed (data minimization); iv) accurate and kept up to date, with all reasonable steps taken to ensure that inaccurate data is erased or rectified without delay (accuracy); v) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the data are processed (storage limitation); vi) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).

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16. Article 5, paragraph 2 establishes the command that the data controller must implement measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the stated principles (accountability).

17. Finally, the regulation on the transfer of data to third countries or international organizations is established in Articles 44 to 50 of the GDPR.

iii) The normative design of the "Draft Agreement"

18. The "Draft Agreement" comprises sixteen articles, as described below: Object (Article 1); Confidentiality (Articles 2); Definitions (Article 3); Scope of cooperation (Article 4); Competent authorities (Article 5); Expenses (Article 6); Right to protection of the identity and privacy of victims (Article 7); Voluntary repatriation of victims of human trafficking (Article 8); Protection of documentation (Article 9); Sending information to a third State (Article 10); Consultations (Article 11); Relationship with other international conventions (Article 12); Entry into force (Article 13); Dispute resolution (Article 14); Review (Article 15); Duration and termination (Article 16).

iv) The possible impact on the protection of personal data

19. In this regard, it should be noted that the norms of the "Draft Agreement" should not be limited to reproducing the provisions of the aforementioned international agreements concluded by the Portuguese Republic and the Federative Republic of Brazil. Such would correspond to a mere "normative tautology."

20. Thus, starting from such international agreements, the present "Draft Agreement" should specify the regulations concerning the legal protection of personal data, in order to deepen its content.

21. The provisions of the "Draft Agreement" with immediate implications for the protection of personal data consist of the following: Article 3 Definitions; Article 5 Competent authorities; Article 7 Right to protection of the identity and privacy of victims; Article 10 Sending information to a third State.

22. In the definitions of the "Draft Agreement," there is no reference to "personal data" and "processing of personal data," making this list significantly incomplete regarding the protection of personal data.

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23. Regarding the competent Portuguese Authorities of the "Draft Agreement" to request and proceed with the communication of personal data concerning victims of human trafficking and the illicit trafficking of migrants, we note that there are seven, namely: the Judicial Police; the National Republican Guard; the Public Security Police; the Observatory of Human Trafficking; the Commission for Citizenship and Gender Equality. In turn, Brazil references only the Federal Police.

24. In this regard, and in order to prevent undue disclosure of the personal data of such victims, while also ensuring the concentrated implementation of the corresponding security measures, these contact functions should be centralized in a single entity.

25. In this context, we remind that Law No. 53/2008, of August 29, known as the Internal Security Law, establishes in its article 23-A the Single Point of Contact for International Police Cooperation (PUC-CPI), stating in paragraph 1 that "[t]he Single Point of Contact for International Police Cooperation (PUC-CPI) is the operational center responsible for coordinating international police cooperation, ensuring the forwarding of national information requests, the receipt, forwarding, and

national dissemination of information from foreign authorities, the transmission of information, and the satisfaction of requests made by them."

26. Article 7 of the "Draft Agreement" is titled "Right to the protection of the identity and privacy of victims," but in its enumeration refers to personal data, such as "ancestry, social condition, sex, gender, ethnicity, race, age, religion, disability, political or ideological beliefs, sexual orientation, and gender identity, culture, and educational level."

27. The mention of privacy, of Anglo-Saxon origin (privacy), close to the reference to private life or intimacy, on one hand, and the omission of the designation of personal data, may lead to undesirable confusions, in addition to providing the respective legal inaccuracies, in a bilateral agreement that is essentially about judicial cooperation.

28. It is also worth mentioning that the norm allowing the sending of personal data to third parties is not sufficiently detailed to enable proficient verification and oversight of this specific processing of personal data.

29. The CNPD recently issued Opinion/2025/17 and Opinion/2025/23 dated February 9 and 17, 2025, respectively, regarding the Agreement between the Portuguese Republic and the Federative Republic of Brazil on the Exchange of Information Related to Criminal Records and Criminal Backgrounds.

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30. In the aforementioned Opinion/2025/17, the following recommendations were established:

- a) It is essential that the text of the Agreement contains norms that address the lack of data protection legislation in this domain in the Federative Republic of Brazil, so that the adequate guarantees of personal data protection provided by Portuguese law and European Union law are ensured;
- b) As far as possible, the specific purposes for which other purposes—other than those of Criminal Procedure—allow the processing of personal data covered by the Agreement should be specified, and the categories of personal data associated with them should be indicated;
- c) The Agreement must contain obligations regarding the security of personal data processing, and the means and effective conditions under which international data transfers occur should be clarified;
- d) The norms regarding the processing of personal data should be detailed, namely, the specific conditions for exercising rights, the conditions under which such rights may be derogated, which entities are responsible for satisfying the rights of the data subject, and whether the data subject can exercise them indiscriminately before one or the other Contracting State;
- e) An obligation should be added for the Requested Party to notify the Receiving Party whenever personal data needs rectification or should be deleted, or is subject to other restrictions, and consequently, the obligation for the Receiving Party to comply with this notification should be foreseen;
- f) Article 7 of the Agreement establishes the duty of custody of the data by the Requesting State, "for the purpose of possible retransmission." This norm should be repositioned in Article 11, clarifying the situations in which such retransmission may occur and clearly distinguishing two situations: "third parties" within the same country and "third parties" located in a third country, which means that there is a further transfer. Thus, it should be expressly provided that communication to third parties, of whatever nature, is subject to prior authorization from the Requested Party, which must be requested and answered in writing, duly substantiated;
- g) On the other hand, if there is to be a transfer of data to "third countries or international organizations," it should be added that in addition to the authorization of the Requested Party, this only...

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may occur on the condition that there are adequate guarantees regarding data protection in the destination country;

h) It should also be added that the receiving Party of the data is obliged to respect any restrictions to which the personal data are subject;

i)

Finally, the Agreement must include a provision regarding administrative and/or judicial remedies for the data subjects, which must be guaranteed in relation to any processing of personal data resulting from this Agreement.

31. These recommendations remain, *mutatis mutandis*, in this Opinion, except for the one mentioned in item f), as the aforementioned prior authorization from the original authority is safeguarded in Article 10 of the "Draft Agreement".

111. Conclusions

32. In accordance with the terms and grounds set forth above, the CNPD issues this Opinion, recommending that:

a) The definitions in the "Draft Agreement" incorporate the meanings of "personal data" and "processing of personal data";

b) The heading of Article 7 of the "Draft Agreement" be titled "Right to privacy and protection of victims' data";

c) The regime for the transfer of personal data to third countries be further specified;

d) The rules regarding the processing of personal data be further specified, in accordance with what is noted in items 28 to 30 mentioned above.

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